

R' Noach Isaac Oelbaum, the author of the מנחת חן, [interesting, his name is נח, so he called the sefer "מנחת חן", נח is ח - נ and ח is נ - ח], asked us a startling question. I've asked this question to many of my אייניקלעך, if not all of them. For those who have heard it, it's good for חזרה. For those who haven't, it is an excellent קשיא, as I've been told by countless patients on whom I have sprung it.

Here's the case: A very ערליך Jew goes to sell his חמץ before פסח to John the גוי down the block. Everything is done correctly, כדעת וכדין, with a proper שטר, a גרטל, and a קנין. Then, in the middle of פסח, John wakes up and says, "Hey, you know, those Jews got it right. I like what they do." and he goes and becomes a גר in the middle of יום טוב.

Now, if you think this is improbable, you're right - it is improbable. But it has happened. In fact, there are two תשובות addressing this exact case. The קשיא, of course, is that once John becomes a גר, all of his possessions - including my million dollars' worth of schnapps - are now owned by a Jew. The moment פסח ends, it becomes חמץ שְׁעֵבֶר עָלָיו הַפֶּסַח. Now what do we do?

The ones who want to answer quickly say, "Okay, you got to get rid of it." I respond, "That's easy for you to say. It's a lot of stuff to get rid of." R' Oelbaum hit us with this קשיא, and many people have told me, "Wow, what a great קשיא".

The answer to this קשיא is another question. And the question is, where does it say in the תורה that חמץ שְׁעֵבֶר עָלָיו הַפֶּסַח is אסור בהנאה? Not just באכילה. You can't do anything with it. You can't sell it to another גוי. The answer is, it's not written in the תורה. So the קשיא is, is חמץ שְׁעֵבֶר עָלָיו הַפֶּסַח אסור דאורייתא, or מחלוקת גאונים? This is not a מחלוקת ראשונים. This is not a מחלוקת אחרונים. This is not even a מחלוקת אמוראים. This is a מחלוקת תנאים. It's a בפירוש משנה in פסחים, רבי יהודה says it's אסור בהנאה, and מדאורייתא, and the חכמים (whom we paskin like) say it's אסור בהנאה מדרבנן. Why? Because it is a קנס that the רבנן imposed. If a person is so low that not only does he not keep פסח, but he doesn't even get rid of his חמץ before פסח - doesn't destroy it, doesn't sell it - the חכמים placed a קנס on his חמץ, making it אסור לעולם. But in this case, the man did sell his חמץ. Therefore, מדרבנן, we do not impose this קנס, and his חמץ remains מותר.

As a delightful postscript to this vort, this shaila was asked to hundreds if not thousands of my patients in Boro Park and Queens over decades. One yungerman was given the question and answer some years ago. He returned to the office the following week with a broad smile. He informed me that his chavrusah was his grandfather, a prominent Dayan in Boro Park. He had posed this question to my patient after we had discussed it, and he related that his grandfather was extremely pleased when he shot the answer back at him.

So, have a very כשר פסח, and make sure that the גוי to whom you sell your חמץ does not become a גר. Good Yom Tov!

